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ATTORNEYS FOR PLAINTIFF

JESSE HERNANDEZ	PHILADELPHIA COUNTY COURT OF COMMON PLEAS
<i>Plaintiff</i>	DECEMBER TERM, 2018
vs.	No.: 02689
INDEPENDENCE TREE SERVICE LLC, SOUTHEASTERN PENNSYLVANIA TRANSPORTATION AUTHORITY And NATIONAL RAILROAD PASSENGER CORPORATION D/B/A AMTRAK	JURY OF 12 DEMANDED THIS IS NOT AN ARBITRATION MATTER
<i>Defendants</i>	

PLAINTIFF'S PRE-TRIAL CONFERENCE MEMORANDUM

Plaintiff, Jesse Hernandez, by and through his counsel, Saltz Mongeluzzi & Bendesky P.C., hereby files this Pre-Trial Conference Memorandum in advance of the Pre-Trial Conference currently scheduled for September 23, 2022 before the Honorable Linda Carpenter.

I. THE MARCH 12, 2018 ACCIDENT

Jesse Hernandez suffered catastrophic injuries on March 12, 2018, when he was struck by a SEPTA train while performing trenching work on SEPTA's airport line near South 58th Street and Grays Avenue in Philadelphia. See Plaintiff's First Amended Complaint ¶ 11, 46. Jesse was an employee of Minority Services, Inc. and was working with his crew on a SEPTA project (the "Project") to install new signal equipment along the SEPTA airport line. See Deposition of Jonathan Watts at 10:16-22. SEPTA contracted with Defendant Independence Constructors Corp.

(“ICC”) to perform the physical work on the Project. At the time of the accident, Jesse and the other workers were located in a trench that ran alongside the rail lines, shown below.



The train was permitted to travel at its full and regular speed as it passed through the active work zone despite the presence of workers in the trench immediately adjacent to the tracks as a result of the poor safety measures and method of on-track protection utilized by Defendants SEPTA and ICC.

For purposes of the Project, SEPTA assigned Jonathan Watts as the Employee-In-Charge (“EIC”). Under SEPTA’s policies, any work that is done “in such proximity to a track that the individual or item could be struck by a moving train or on-track equipment, or in any case is within four feet of the field side of the near running rail[]” is considered ***fouling the track***.

Fouling a Track - the placement of an individual or an item of equipment in such proximity to a track that the individual or item could be struck by a moving train or on-track equipment, or in any case is within four feet of the field side of the near running rail.

See SEPTA Roadway Worker Protection Manual at p. SRW-26 (emphasis added).

Mr. Watts testified that the trench was dug four feet from the rails. See Deposition of Jonathan Watts at 88:6 – 89:6. Depending on the work being performed and its proximity to the rail lines, SEPTA can employ different methods of on-track protection for the workers. SEPTA's signal foreman, Jermie Ortiz, testified that the different methods of on-track protection that can be used are lone worker, Train Approach Warning ("TAW"), Rule 135, foul time, and track-out-of-service. See Deposition of Jermie Ortiz at 24:10-16. Under the TAW method of on-track protection, one or more watchpersons are stationed such that they can observe trains approaching the work area and provide warning to the workers in sufficient time to enable each worker to move to and occupy a previously arranged place of safety no less than 15 seconds before the train moving at maximum authorized speed can pass the location of safety.

SRW-32. Provide Train Approach Warning

Train approach warning can be used to protect roadway workers outside working limits by using one or more watchpersons. Train approach warning shall be given in sufficient time to enable each roadway worker to move to and occupy a previously arranged place of safety no less than 15 seconds before the train moving at the maximum authorized speed can pass the location of safety.

See SEPTA Roadway Worker Protection Manual, at SRW-32 (emphasis added); see also SEPTA System Safety Executive Summary Report, at p. 1 n. 2.

Under the Rule 135 method of on-track protection, a train intending to pass through the work area is brought to a complete stop prior to the work area, the workers are all given ample

time to move to an appropriate position of safety away from the rails, and the train is only allowed to proceed through the work area, at a reduced rate of speed, upon confirmation that all workers are safe and the train is given the signal that it is safe to proceed. *See* Deposition of Jermie Ortiz at 26:5-16; Deposition of William Boyer at 104:5-17. Under the foul time method of on-track worker protection, a SEPTA dispatcher is contacted and provides permission for workers to foul the track for a certain period of time based on when the train schedule allows. *Id.* at 27:7 – 28:4. Under the track-out-of-service method of on-track protection, the entire stretch of track is shut down so the work can be done without any trains passing through. *Id.* at 28:6-11.

Under no circumstances can work be performed under the TAW method of on-track protection if the work involves fouling the track. William Boyer, a member of the accident investigation group within SEPTA's internal System Safety department, testified that TAW should not be used if work is going to disturb, or foul, the track and a Rule 135 method should be used:

Q. **Okay. So if there's work that has the potential to disturb the track - -**

A. Yes.

Q. **- - that is work that needs to be done, according to your testimony, under a Rule 135 procedure or a track out of service and not a Train Approach Warning; is that accurate?**

A. **Correct.**

Deposition of William Boyer at 44:3-11 (emphasis added).

Despite the fact that the trench was four feet from the rails and the work, at a minimum, had the potential to disturb the track, TAW was the method of on-track protection used for the Project at the location of the accident. Charles Rhoads, a Minority Services employee, was selected as the sole watchperson to provide warning to the workers for trains approaching from either direction. *See* Deposition of Charles Rhoads at 75:12-18. Because TAW was selected as the method of on-track protection, the subject train was permitted to pass through the work site at

its normal rate of speed. Mr. Hernandez was struck when the train was passing through the work area.

II. DEFENDANT ICC’S INDISPUTABLE LIABILITY

A. ICC Did Absolutely *Nothing* to Satisfy Its Safety Responsibilities

SEPTA contracted with Defendant ICC to perform the Project work. *See generally* SEPTA-ICC Contract. This contract obligated ICC to “perform those services and supply those products described in the SPECIFICATIONS which are made a part of the contract and hereinafter called the ‘Work.’” *Id.* at ¶ I. In turn, Contract Exhibit VII – Specifications, references and incorporates the Trenching and Support Activities specifications dated September 8, 2011. *Id.* at Contract Exhibit VII. The Trenching and Support Activities specifications required ICC to “provide all required tools and equipment and safety materials required for the work[]” and ensure that the workers adhere to the requirements of the SEPTA Roadway Worker Protection Program.

1.05 RESPONSIBILITY OF CONTRACTOR

The Contractor shall obtain and pay for any necessary permits, governmental fees and licenses required for the proper execution and completion of the work. Contractor shall be responsible for transportation to and from the job site. Contractor shall provide all required tools and equipment and safety materials required for the work. Contractor shall be responsible to ensure their employees obtain and remain qualified on the SEPTA’s railroad Roadway Worker Protection Program and shall adhere to all requirements therein.

See Trenching and Support Activities Specifications at 1.05 (emphasis added).

The Trenching and Support Activities specifications further provide that ICC was “responsible for the safety of his crew’s operations, and for any SEPTA personnel they are assigned to as Watchpersons[]” and to “post adequate watchmen and/or protective devices to protect any work crews and the work site[.]”

1.06 SAFETY OF OPERATION

- A. The work covered by this contract will involve safety of persons and property on a live electrified rail line. Therefore, special care is required of the Contractor to do his work safely. The Contractor shall be responsible for the safety of his crew's operations, and for any SEPTA personnel they are assigned to as Watchpersons.
- B. The Contractor shall post adequate watchmen and/or protective devices to protect any work crews and the work site, in accordance with SEPTA Roadway Worker Protection program and as directed by the SEPTA Project Manager. Pertinent safety rules, which are to be followed, are listed in

Id. at 1.06 (emphasis added).

Dennis Coleman, SEPTA's Director of the Communications & Signals (C&S) Department, confirmed that ICC was responsible for safety as spelled out in the contract.

Q. The second to last sentence reads, "Contractor shall provide all required tools and equipment and safety materials required for the work." Is that consistent with your understanding of a responsibility that Independence had on this project?

A. Yes.

Q. It goes on to say, "Contractor shall be responsible to ensure their employees obtain and remain qualified on the SEPTA's Railroad Roadway Protection Program and shall adhere to all requirements therein." Is that consistent with your understanding back in 2018 as to at least one of the responsibilities that Independence had on this project?

A. Yes.

Q. Is it your understanding and was it your understanding back in 2018 that Independence had an obligation to ensure that all of its employees and the workers onsite adhere to the requirements in the RWP Program or Manual?

[objection interposed]

A. Yes.

Q. When I just say "responsible", sir, Mr. Coleman, if you need to say, if you need to break it down and say they are solely responsible or party responsible, my question was just did you understand that

Independence, back in 2018 on this project, had responsibility for the safety of its crew's operations?

[objection interposed]

A. **Yes.**

Q. **Did you have an expectation that Independence would take steps and measures necessary for the safety of its crew's operations?**

[objection interposed]

A. **Yes.**

Deposition of Dennis Coleman at 93:16 – 95:2; 102:21 – 103:15 (emphasis added).

Mr. Coleman also testified that SEPTA expected that Independence would ensure that the Project work was done in accordance with the rules, regulations, procedures, and safe practices of SEPTA, OSHA, and the FRA.

Q. **As the director of the C&S Department that was overseeing this project's work, did you have an expectation that Independence would perform its work in accordance with the rules, regulations, procedures, and safe practices of not only SEPTA, but OSHA and FRA as well?**

[objection interposed]

A. **Yes, I gathered - - yes. I would say that would be a yes.**

Id. at 104:16 – 105:2 (emphasis added).

Despite its contractual responsibilities for safety, *Defendant ICC didn't supply a single worker for the Project and completely shirked its safety responsibilities.* ICC owner, Steve Hare, testified that ICC never actually provided any workers to the Project and failed to provide personnel to satisfy ICC's contractual safety obligations:

Q. And just to make the record clear, the people that were performing the job, those were employed by Minority Services, right?

A. Subcontractor, that's correct.

Q. **And no Independence person, aside from perhaps yourself as the apparent project manager, there was no Independence person on-site performing work, right?**

[objection interposed]

A. **Yes.**

Q. Okay. Would you agree with me, sir, that Independence did not provide any employees that were responsible for the safety of the crews' operations?

[objection interposed]

A. Yes.

Deposition of Steve Hare at 104:20 – 105:14 (emphasis added).

Plaintiff's expert, Mr. Da Silva, explains that industry standard practice for a contractor such as ICC is to have personnel on the project site actually fulfilling the contractual obligations the contractor undertook in connection with the performance of the work. Mr. Da Silva explains that ICC "woefully failed to comply with this common industry standard practice and as a result, did nothing to ensure the safety of the workers or the project."

Mr. Hare, the owner of Independence, testified that Independence did not supply a single worker to this project and that instead, all workers on the project were employed by a different company he owned, Minority Services (pages 100-101). As a result, **despite its contractual obligations discussed above, Independence did not have a single person on this Independence project responsible for safety of the workers, evaluating the safety measures put in place, acting as a watchperson, or performing any safety-related functions whatsoever.** Mr. Hare very candidly admits that Independence did not provide any employees for this project who were responsible for the safety of the crew's operations (page 105). Independence thus failed to fulfill any of its contractual safety responsibilities on this project. Industry standard practice for a contractor such as Independence is to have personnel on the project site fulfilling the contractual obligations the contractor undertook in connection with the performance of the work. Independence woefully failed to comply with this common industry standard practice and as a result, did nothing to ensure the safety of the workers or the project. As discussed further below, had Independence committed manpower to

Exhibit A, Expert Report of Mr. Da Silva at p. 12 (emphasis added).

Instead of taking action and supplying personnel to the Project who would ICC's safety obligations, all ICC did was subcontract the work to Minority Services. See ICC-Minority Services Subcontract. However, under the terms of its contract with SEPTA, ICC was not

permitted to subcontract out the Project work without prior written consent to do so by SEPTA. ICC never obtained this and was thus not permitted to subcontract out this Project work.

XVII. **ASSIGNMENT OF RIGHTS: DELEGATION OF DUTIES**

- A. Contractor shall not sell, assign, transfer, or dispose of any interest in the Contract without the prior written consent of SEPTA thereto. SEPTA shall not be obligated to give such consent.
- B. **Contractor shall not delegate any duty to be performed under the Contract without prior written consent of SEPTA thereto.**

See SEPTA-ICC Contract at XVII (emphasis added).

Mr. Hare confirmed that ICC never got written consent from SEPTA to delegate its duties under the contract to Minority Services:

- Q. **Section XVII(b) says, “Contractor shall not delegate any duty to be performed under the contract without prior written consent of SEPTA thereto.” Do you see that?**
- A. **Yes.**
- Q. Now, there was - - and we’re going to get into it in a moment, but am I correct that there is a subcontract agreement for this project between Independence and Minority?
- A. Yes.
- Q. **Did Independence seek any written consent from SEPTA in order to delegate any duties that Independence had under this contract with SEPTA to Minority Services?**
- A. **No.**
- Q. **And I’m assuming that because Independence never sought such written consent, no written consent exists?**
- A. **That’s correct.**
- Q. **Did you understand by virtue of no written consent existing that Independence could not delegate any of its duties to be performed under this contract to Minority Services?**
- A. **No, I - - I didn’t know that at the time. I wish you were there before I signed it.**

Deposition of Steve Hare, at 50:21 – 51:23 (emphasis added).

Regardless, Mr. Hare testified that he never intended to transfer ICC's duties under its contract with SEPTA—which include ICC's safety obligations—to Minority Services through the subcontract, including those spelled out in the Specifications.

Q. **In the subcontract between Independence and Minority, was it your intention that Independence's duties under this contract with SEPTA would be transferred to Minority?**

[objection interposed]

A. **No.**

Q. Okay. The prohibition in Section XVII(b) here for Independence to delegate any duties under this contract without the prior written consent of SEPTA, that would include Independence's duties and obligations under the specifications that are part of this contract, correct?

[objection interposed]

A. Yes.

Id. at 53:1-16 (emphasis added).

Thus, Defendant ICC was responsible for safety of the work being done on the Project and the workers but failed to provide a single person to the Project to fulfill these critical responsibilities. There is no doubt that ICC will be found negligent and liable for its complete and utter failure to even so much as attempt to satisfy its contractual safety responsibilities.

B. **Defendant ICC's Failure to Prevent a Dangerous Method of On-Track Protection Being Used**

As stated above, under no circumstances can work be performed under the TAW method of on-track protection if the work involves fouling the track. William Boyer, a member of the accident investigation group within SEPTA's internal System Safety department, testified that TAW should not be used if work is going to disturb, or foul, the track and a Rule 135 method should be used:

Q. **Okay. So if there's work that has the potential to disturb the track - -**

A. Yes.

Q. - - that is work that needs to be done, according to your testimony, under a Rule 135 procedure or a track out of service and not a Train Approach Warning; is that accurate?

A. Correct.

Deposition of William Boyer at 44:3-11 (emphasis added).

Even though the Project work was fouling the track and TAW should not have been used, Mr. Ortiz testified that TAW was selected as the method of on-track protection used for the Project. See Deposition of Jermie Ortiz at 36:22 – 37:5. As a result of (improperly) selecting TAW as the method of on-track protection being used, it was imperative that the workers were instructed as to a safe location they could clear to when trains passed through the work area. The clear location was covered in the pre-job briefing held on the morning of the accident.

 JOB BRIEFING DOCUMENTATION SHEET			
Date: <u>3/12</u>	Time: <u>6:00 am</u>	Employee In Charge: <u>Tony Watts</u>	Work Location: <u>PHIL</u>
Description of Work Assignment: <u>Re-rail work</u>			
CHECK OFF THE TOPICS DISCUSSED TO ENSURE COMPLIANCE			
☒ Roadway Worker Protection	☐ Roadway Maintenance Machines		
☒ <u>Track speeds</u>	☐ Communication between operator/roadway workers		
☒ Where will we clear	☐ Proper spacing between machines/roadway workers		
☐ Location of all watchmen/flagmen	☐ Maximum working and travel speeds		
☒ Unusual work site hazards			
☒ Form of protection being used			
☐ Other special instructions			
☒ Individual responsible for providing on track protection	☒ Direction of Train Traffic: ☐ 251 or ☐ 261		
Name: _____	☒ Personal protective equipment		
☒ Safety rule discussed, Rule Number: <u>1202B</u>	☐ Respiratory protection requirements		
☒ Tools checked for defects <u>1157</u>	☐ Fall protection requirements		
☒ Vehicles checks for defects	☐ Confined space requirements		
☒ Equipment checked for defects	☒ Possession of all valid qualification cards		
☐ Overhead wires (Energized/De-energized)	☐ Environmental Hazards		
	☐ Industrial Hygiene Concerns		

See SEPTA Job Briefing Documentation Sheet (emphasis added).

Mr. Watts testified:

Q. Where we will clear, is this talking about when a train comes this is where you tell the workers they need to go and position themselves to be in a position of safety?

A. Yes.

Deposition of Jonathan Watts at p. 38 (emphasis added).

On the morning of the accident, Mr. Watts instructed the workers that they could clear by *remaining in the trench* as the train passed by, only four feet away from them. Mr. Watts confirmed he instructed the workers they could remain in the trench as the clear location:

Q. Okay. Was one of the other methods or - - not methods, but locations where workers were told they could clear on the date of this accident was within the trench itself?

A. Yes.

Q. And then the other thing was that workers could remain in the trench; is that true?

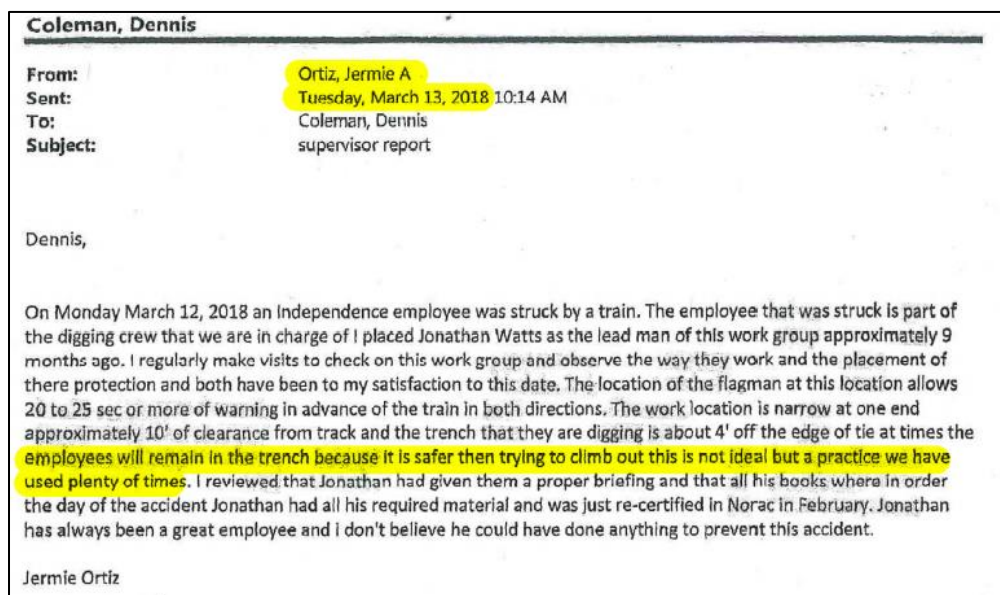
A. Yes.

Q. And you told workers that in the job briefing the morning of the accident?

A. Verbally, yes.

Id. at 41:13-17; 103:16-22 (emphasis added).

In a post-accident email, Mr. Ortiz stated that that instructing workers to remain in the trench is “not an ideal practice[.]”



See Ortiz Mar. 13, 2018 email (emphasis added).

Plaintiff's train operations and safety expert, Mr. Da Silva, concurs that instructing workers to remain in the ditch while trains passed through the work area was an unsafe practice given that the trench and the workers in it were fouling the track.

In addition to the wrong method of On Track Protection being implemented, the workers were dangerously instructed that it was permissible for them to remain in the trench when trains passed by. Since the work limits were on or within the Foul Line, this violated safety rules and was an exceedingly dangerous instruction which exposed all workers, including Jesse Hernandez, to grave danger. As the work performed in the trench would

be considered fouling the track, the workers were instructed that they could clear by staying in the trench and continuing to foul the track. It is never a safe or acceptable practice to instruct workers that they can clear to a position of safety that is located on the foul line. Additionally, as established later in this report, the lone watchperson, Mr.

Ex. A, Expert Report of Mr. Da Silva at 9-10 (emphasis added).

There is no question that TAW was an improper and unsafe method of on-track protection for this Project work because the workers and the trench were fouling the track. Indeed, SEPTA's internal post-accident investigation, conducted by SEPTA's System Safety division, concluded that TAW should not have been used:

has been working in this area for the last three weeks.⁷ When questioned about the type of On Track Protection, they both stated they were using Train Approach Warning. Mr. Coleman stated that one Watchperson was being used to cover trains traveling in both directions on this single track.⁸ System Safety Investigation identified that this type of On Track Protection was not adequate. The Roadway Workers were digging a trench next to the edge of a tie and disturbing the track area within 4 feet from the rail. This would constitute fouling the track. When performing any type of work that will have the potential to endanger the track structure, a track inspector qualified in track standards under 49 CFR

See SEPTA System Safety Executive Summary Report, at p. 3 (emphasis added).

SEPTA's System Safety division determined that instead of TAW, the track should have been taken out of service for this work or, alternatively, a Rule 135 could have been used (See Deposition of William Boyer at 44:3-11).

part 213 will typically decrease the class of that track to a lower classification which reduces the track speed. This type of work would require an Out Of Service track and not train approach warning.

See SEPTA System Safety Executive Summary Report at p. 4 (emphasis added).

Mr. Boyer testified the conclusion that the trench was dug such that it was fouling the track was based on his own measurements, and that he stands behind his conclusions:

Q. Okay. This goes on to state, and what you wrote was, "The Roadway Workers were digging a trench next to the edge of a tie and disturbing the track area within four feet from the rail." Do you see that?

A. Yes.

Q. And you say that this would constitute fouling the track. Are those statements that you still stand behind today?

A. Yes.

Q. The fact that the trench was dug next to the edge of the tie and disturbing the track area within four feet from the rail, that knowledge or that information that it was within four feet, would that have come from your own onsite measurements?

[objection interposed]

A. Yes, that would be from my measurements and the measurements that I received prior from the individuals that were there.

Q. It says, "When performing any type of work that will have the potential to endanger the track structure, a track inspector qualified in track standards under 49 CFR part 213 will typically decrease the class of the track to a lower classification, which reduces the track speed. This type of work would require an Out of Service track and not train approach warning." Do you see that?

A. Yes.

Q. That conclusion, that the work being done at the time of the accident and the location of the accident, instead of using Train Approach Warning should have required an out of service track, that's a conclusion that you stand by today?

[objection interposed]

A. Yes.

Deposition of William Boyer at 98:10 – 100:19 (emphasis added).

When the work was eventually finished after Plaintiff's accident, SEPTA employed a Rule 135 procedure. *Id.* at 104:19 – 105:5. Plaintiff's expert, Mr. Da Silva, concurs that TAW was not a safe or proper method of on-track protection to use and that if a proper method of on-track protection, like track out of service, foul time, or a Rule 135 procedure, was used this accident would not have happened.

4. The Method of On Track Protection in Place Was Improper, Unsafe, and Inadequately Implemented

The method of On Track Protection selected by the SEPTA EIC was TAW. TAW is the **lowest** form of On Track Protection. Under TAW, the train tracks remain completely active, as if there is no work being performed. A watchperson or watchpersons are stationed such that they can adequately observe an approaching train from far away enough to allow for a horn to be sounded and the workers alerted to the oncoming train such that they can stop their work and clear to a position of safety at least 15 seconds prior to the train passing through. Under SEPTA's own rules and procedures, TAW is not the appropriate method of On Track Protection to be used if work could be fouling the track, i.e. within 4 feet of rail. According to the Trenching and Support Activities

The work being performed by Jesse Hernandez on the date of the accident was unquestionable fouling the track, as defined by the FRA and by SEPTA. This was also confirmed by the scene photographs produced by SEPTA showing the proximity of the trench to the tracks, and also by my own site inspection in March 2022. When work is fouling the track or has the potential to foul the track, TAW is not the safe and proper method of On Track Protection to use. This is common knowledge in the industry and a consistently employed safety practice is to implement foul time, which temporarily restricts movement of trains on the subject tracks to allow for the work to be completed safely. Per SEPTA's own investigation (discussed more below), and SEPTA's operating rules and procedures, the appropriate method of On Track Protection to use would be 1) Track Out of Service, where the track is shut down and trains cannot travel on them so the work can be done, or 2) a "Rule 135," which involves bringing trains to a complete stop immediately before the work area and allowing the train to proceed at a drastically reduced speed only once all workers are confirmed to be in a position of safety. Had either the Track Out of Service or the Rule 135 been implemented, this accident would not have happened.

Ex. N, Expert Report of Mr. Da Silva at p. 9 (emphasis added).

SEPTA's System Safety internal investigation also concluded that utilizing only a single watchperson for this work to warn of oncoming trains was inadequate and there should have been more than one watchperson on duty.

System Safety investigation identified there is a consensus among the C&S Management staff that using this type of On Track Protection for this fouling type of work was sufficient. C&S Management did not have a clear understanding of the proper protection needed for this type of fouling work or recognize that **only one watch person for this area was not adequate**. This lack of understanding on the part of the managers would identify the need for additional training with emphasis on the Roadway Worker Protection safety rules (**Recommendation # 1**).

See SEPTA System Safety Executive Summary Report at p. 5 (emphasis added).

Mr. Boyer explained that the sole watchperson, Mr. Rhoads, was not appropriately positioned so as to observe oncoming trains with sufficient warning time, and that there should have been two watchpersons used:

Q. **Based on your investigation and your understanding of this work location, was Mr. Rhoads, as Watchperson Rhoads, appropriately positioned so that he could safely and adequately alert the workers as to the oncoming trains from either the north or the south?**

[objection interposed]

A. **No, he was not.**

Q. **And can you tell me why it is that you concluded that he was not appropriately positioned?**

[objection interposed]

A. **In this case here, by being a single track and having a major high degree curve, he was not able to see the northbound train coming from the airport, itself. He was the only lone watchperson out there. In this instance and this location there should have been at least two watchpersons, one at each end, to alert the crew of the approaching train, whether the train is traveling southbound towards the airport or northbound towards Center City.**

Deposition of William Boyer at 86:23 – 88:6 (emphasis added).

Mr. Boyer testified that the contractor, ICC, had an obligation to evaluate the safety methods being used, including the selection of TAW and the decision to use only one watchperson,

and utilize its judgment to determine whether the selected methods were adequate and safe. If ICC determined that they were inadequate or unsafe, ICC should have alerted SEPTA.

Q. And it would be the responsibility of the contractors to evaluate whether or not they have concerns in the first place with the method of on track protection that's being used; correct?

A. Correct.

Q. Let me rephrase it. Is it expected that contractors, after an Employee In Charge has made the determination to use a certain number of watchpersons stationed at a location or locations, is it expected that the contractors will use their own judgment to confirm for themselves that they agree with what the Employee In Charge has determined?

[objection interposed]

A. Yes.

Q. And if, as a result of using their own judgment, they disagree with what the Employee In Charge has determined, my understanding is that they are entitled and have the right to raise that concern?

A. Absolutely.

Id. at 73:18-23; 56:2-20 (emphasis added).

ICC badly failed this responsibility. Mr. Boyer further testified that Defendant ICC should have recognized that TAW was a dangerous and inappropriate method of on-track protection.

Q. Now, your conclusions here, that the work being done would constitute fouling the track and that Train Approach Warning should not have been used and it would require an out of track service, is that information that you would expect and that SEPTA expects its employees in charge, including Jonathan Watts, to know?

[objection interposed]

A. Yes.

Q. Is that also something that, based on your knowledge of the rules that the contractors are trained on, that the contractor in this case, Independence, should have recognized?

[objection interposed]

A. Yes.

Q. And that if Independence had utilized its own judgment to recognize that, they should have raised that concern to the Employee In Charge; correct?

[objection interposed]

A. Yes. Correct.

Q. And is it an expectation, from a standpoint of safety, is it an expectation of SEPTA that they, that the contractors, themselves, so in this case Independence, will utilize its own judgment and determine whether or not a challenge needs to be made?

[objection interposed]

A. Yes.

Id. at 105:7 – 106:22; 133:10-19 (emphasis added).

Plaintiff's expert, Mr. Da Silva, explains that ICC completely failed to abide by its contractual safety responsibilities and further failed to do *anything* to evaluate the safety procedures being used on the Project. Mr. Da Silva concludes that if ICC abided by its responsibilities the dangerous TAW method of on-track protection would not have been used, more than one watchperson would have been deployed, and the accident would have been avoided.

single watchperson and stationing him in a location inadequate to perform the watchperson duties properly. However, for anything that SEPTA did wrong in terms of safety, Independence was responsible to perform its own safety evaluation and determine whether the safety measures selected by SEPTA would keep its workers safe. Independence utterly failed to take *any* action whatsoever to do this, and as a result caused this accident. Any failures by SEPTA must be owned by Independence as Independence had its own duty and obligation (both contractually, under SEPTA's RWP program, and under common industry safety standards and practices for contractors on railway projects) to ensure the work was safe, that the method of On Track Protection being used was adequate, that the workers were given a place of safety to clear to, and that enough watchpersons were used and properly positioned in order to protect the workers. Independence miserably failed its responsibilities in these regards.

In addition to the written contract documents which placed safety responsibilities on Independence, witness testimony confirms that Independence had an obligation to evaluate the work situation and the method of On Track Protection chosen for the work, and any other safety measures, and ensure itself that such protective measures were adequate. Mr. William Boyer, a SEPTA System Safety personnel, testified that a contractor, like Independence, must evaluate whether or not it had any concerns with the method of On Track Protection being used in the first place (page 73). Independence completely failed to perform its own analysis or evaluation of the method of On Track Protection and other safety measures in place. As a result, the work was performed under an inadequate and improper method of On Track Protection, as discussed further herein. Additionally, Independence's total failure to perform any of its safety responsibilities on the project site led to the workers being instructed that they could clear by remaining in the trench when trans passed by.

C. Failure 3. Independence's Complete Failure to Satisfy Any of its Safety Responsibilities

- Independence unquestionably had significant and important safety responsibilities pursuant to its contract with SEPTA and under relevant industry safety practices and standards for contractors working on a project on or immediately adjacent to active railroad tracks, including FRA, OSHA, and SEPTA's own RWP program.
- Independence miserably failed to satisfy its safety responsibilities. In fact, Independence didn't even attempt to satisfy them as Mr. Hare confirmed that Independence did not provide even a single worker for this project whose role was to satisfy Independence's safety responsibilities.
- Had Independence properly satisfied its safety responsibilities, TAW would not have been used in the first place and, even if it was, more than one watchman would have been used, Mr. Hernandez would have been provided with the proper amount of time to clear, and a proper and safe place to clear would have been established.
- Had Independence satisfied its safety responsibilities, this accident would not have happened.

Defendant ICC's failures are extensive, and they resulted in devastating injuries to Plaintiff. Had ICC fulfilled *any* of its safety responsibilities, TAW would not have been used and adequate watchpersons would have been deployed. ***Defendant ICC's liability is inevitable.***

III. SEPTA'S LIABILITY

As stated above, SEPTA assigned its employee, Mr. Watts, as the EIC. Mr. Watts testified that he was responsible for the work being performed and the safety of the workers involved:

Q. Okay. What does it mean to be an employee in charge for SEPTA?

A. You are responsible for job briefings, work group.

Q. Responsible for the job briefings and for the work group?

A. Right, for the work that needs to be done.

Q. **Sure. As the SEPTA employee in charge on the 60th Street North to Phil project were you responsible for the safety of the men and women performing the work on the project?**

[objection interposed]

A. **Yes.**

Q. **As the employee in charge were you responsible for making sure that the work was done according to plan?**

A. **Yes.**

Deposition of Jonathan Watts at 15:9-16; 16:8-20 (emphasis added).

SEPTA's EIC, Jonathan Watts, thus determined and instructed that the trench be dug such that the workers were fouling the track for the Project work. The trench being so close to the tracks that it was fouling the track during active train operations was unquestionably dangerous and subjected the workers, including Plaintiff, to an unreasonable risk of harm as they were made to stand immediately adjacent to the tracks as the trains passed through the Project site.

Under no circumstances can work be performed under the TAW method of on-track protection if the work involves fouling the track. William Boyer, a member of the accident investigation group within SEPTA's internal System Safety department, testified that TAW should not be used if work is going to disturb, or foul, the track and a Rule 135 method should be used:

Q. **Okay. So if there's work that has the potential to disturb the track - -**

A. Yes.

Q. - - that is work that needs to be done, according to your testimony, under a Rule 135 procedure or a track out of service and not a Train Approach Warning; is that accurate?

A. Correct.

Deposition of William Boyer at 44:3-11 (emphasis added).

Even though the Project work was fouling the track and TAW should not have been used, Mr. Ortiz testified that he and Mr. Watts determined that TAW was going to be the method of on-track protection used for the Project. See Deposition of Jermie Ortiz at 36:22 – 37:5. As a result of (improperly) selecting TAW as the method of on-track protection being used, it was imperative that SEPTA's EIC, Mr. Watts, ensure that the workers were instructed as to a safe place they could clear to when trains passed through the work area. The clear location was covered in the pre-job briefing held on the morning of the accident.

 JOB BRIEFING DOCUMENTATION SHEET			
Date: <u>3/12</u>	Time: <u>6:00 am</u>	Employee In Charge: <u>Johnny Watts</u>	Work Location: <u>PHIL</u>
Description of Work Assignment: <u>Paint work</u>			
CHECK OFF THE TOPICS DISCUSSED TO ENSURE COMPLIANCE			
☒ Roadway Worker Protection	☐ Roadway Maintenance Machines		
☒ <u>Track speeds</u>	☐ Communication between operator/roadway workers		
☒ <u>Where will we clear</u>	☐ Proper spacing between machines/roadway workers		
☐ Location of all watchmen/flagmen	☐ Maximum working and travel speeds		
☒ Unusual work site hazards			
☒ Form of protection being used			
☐ Other special instructions			
☒ Individual responsible for providing on track protection	☒ Direction of Train Traffic: ☐ 251 or ☐ 261		
Name: _____	☒ Personal protective equipment		
☒ Safety rule discussed, Rule Number: <u>1202B-1157</u>	☐ Respiratory protection requirements		
☒ Tools checked for defects	☐ Fall protection requirements		
☒ Vehicles checked for defects	☐ Confined space requirements		
☒ Equipment checked for defects	☒ Possession of all valid qualification cards		
☐ Overhead wires (Energized/De-energized)	☐ Environmental Hazards		
	☐ Industrial Hygiene Concerns		

See SEPTA Job Briefing Documentation Sheet (emphasis added).

Mr. Watts testified:

Q. Where we will clear, is this talking about when a train comes this is where you tell the workers they need to go and position themselves to be in a position of safety?

A. Yes.

Q. Are you the person, as the employee in charge, that determines where that clear location is?

A. Yes, I am.

Q. How do you go about making that determination?

A. You go about making that determination where it's safe and where you are out of the foul.

Q. Would you make that determination every single morning?

A. Yes.

Deposition of Jonathan Watts at 38:8-244 (emphasis added).

On the morning of the accident, Mr. Watts instructed the workers that they could clear by *remaining in the trench* as the train passed by, only four feet away from them. Mr. Watts confirmed he instructed the workers they could remain in the trench as the clear location:

Q. Okay. Was one of the other methods or - - not methods, but locations where workers were told they could clear on the date of this accident was within the trench itself?

A. Yes.

Q. And then the other thing was that workers could remain in the trench; is that true?

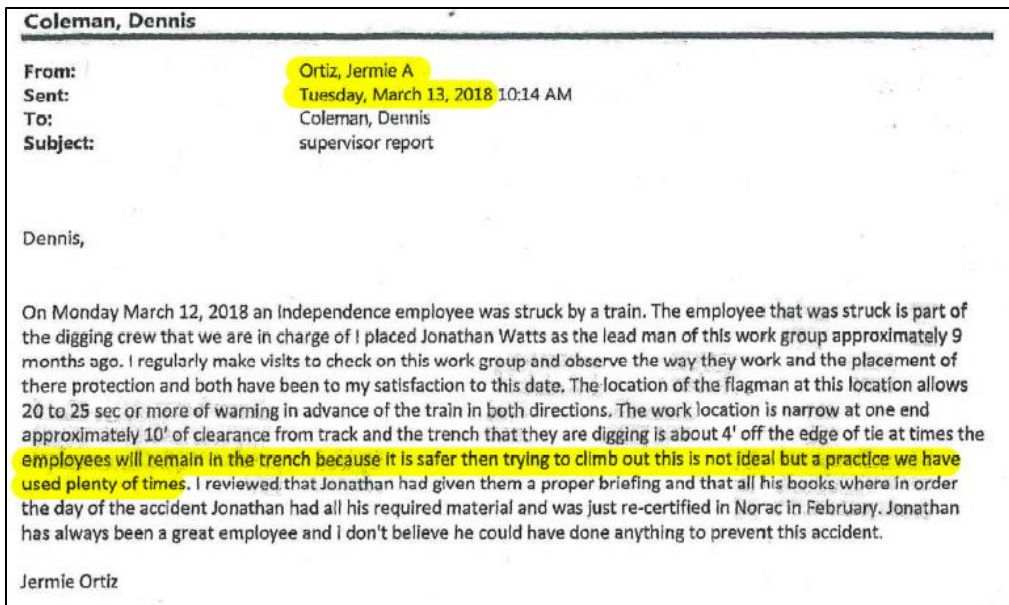
A. Yes.

Q. And you told workers that in the job briefing the morning of the accident?

A. Verbally, yes.

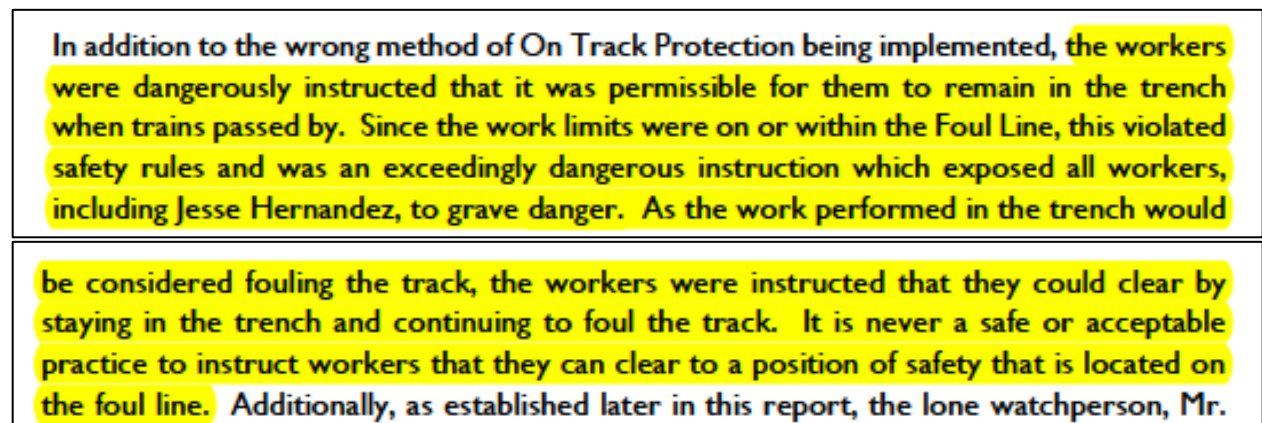
Id. at 41:13-17; 103:16-22 (emphasis added).

In a post-accident email, Mr. Ortiz stated that that instructing workers to remain in the trench is “not an ideal practice[.]”



See Ortiz Mar. 13, 2018 email (emphasis added).

Plaintiff's train operations and safety expert, Mr. Da Silva, concurs that instructing workers to remain in the ditch while trains passed through the work area was an unsafe practice given that the trench and the workers in it were fouling the track.



See Expert Report of Mr. Da Silva at 9-10 (emphasis added).

There is no question that TAW was an improper and unsafe method of on-track protection for this Project work because the workers and the trench were fouling the track. Indeed, SEPTA's own internal post-accident investigation, conducted by SEPTA's System Safety division, concluded that TAW should not have been used:

has been working in this area for the last three weeks.⁷ When questioned about the type of On Track Protection, they both stated they were using Train Approach Warning. Mr. Coleman stated that one Watchperson was being used to cover trains traveling in both directions on this single track.⁸ System Safety Investigation identified that this type of On Track Protection was not adequate. The Roadway Workers were digging a trench next to the edge of a tie and disturbing the track area within 4 feet from the rail. This would constitute fouling the track. When performing any type of work that will have the potential to endanger the track structure, a track inspector qualified in track standards under 49 CFR

See SEPTA System Safety Executive Summary Report, at p. 3 (emphasis added).

SEPTA's System Safety division found that SETPA's involved personnel "did not have a clear understanding of the proper protection needed for this type of fouling work[.]"

System Safety investigation identified there is a consensus among the C&S Management staff that using this type of On Track Protection for this fouling type of work was sufficient. C&S Management did not have a clear understanding of the proper protection needed for this type of fouling work or recognize that only one watch person for this area was not adequate. This lack of understanding on the part of the managers would identify the need for additional training with emphasis on the Roadway Worker Protection safety rules (Recommendation # 1).

Id. at p. 5 (emphasis added).

SEPTA's System Safety division determined that instead of TAW, the track should have been taken out of service for this work or, alternatively, a Rule 135 could have been used (See Deposition of William Boyer at 44:3-11).

part 213 will typically decrease the class of that track to a lower classification which reduces the track speed. This type of work would require an Out Of Service track and not train approach warning.

See SEPTA System Safety Executive Summary Report at p. 4 (emphasis added).

Mr. Boyer testified the conclusion that the trench was dug such that it was fouling the track was based on his own measurements, and that he stands behind his conclusions:

Q. Okay. This goes on to state, and what you wrote was, "The Roadway Workers were digging a trench next to the edge of a tie and disturbing the track area within four feet from the rail." Do you see that?

A. Yes.

Q. And you say that this would constitute fouling the track. Are those statements that you still stand behind today?

A. Yes.

Q. The fact that the trench was dug next to the edge of the tie and disturbing the track area within four feet from the rail, that knowledge or that information that it was within four feet, would that have come from your own onsite measurements?

[objection interposed]

A. Yes, that would be from my measurements and the measurements that I received prior from the individuals that were there.

Q. It says, "When performing any type of work that will have the potential to endanger the track structure, a track inspector qualified in track standards under 49 CFR part 213 will typically decrease the class of the track to a lower classification, which reduces the track speed. This type of work would require an Out of Service track and not train approach warning." Do you see that?

A. Yes.

Q. That conclusion, that the work being done at the time of the accident and the location of the accident, instead of using Train Approach Warning should have required an out of service track, that's a conclusion that you stand by today?

[objection interposed]

A. Yes.

Deposition of William Boyer at 98:10 – 100:19 (emphasis added).

Mr. Boyer testified that the trench being close enough to foul the track and consequently that TAW was not a proper method of on-track protection is something that SEPTA's EIC, Mr. Watts, should have recognized:

Q. Now, your conclusions here, that the work being done would constitute fouling the track and that Train Approach Warning should not have been used and it would require an out of track service, is that information that you would expect and that SEPTA expects its employees in charge, including Jonathan Watts, to know?

[objection interposed]

A. Yes.

Q. That's something that Jonathan Watts should have recognized; correct?

[objection interposed]

A. Yes.

Id. at 105:7 -106:3 (emphasis added).

When the work was eventually finished after Plaintiff's accident, SEPTA employed a Rule 135 procedure. *Id.* at 104:19 – 105:5. Plaintiff's expert, Mr. Da Silva, concurs that TAW was not a safe or proper method of on-track protection to use and that if SEPTA did utilize a proper method of on-track protection, like track out of service, foul time, or a Rule 135 procedure, this accident would not have happened.

4. The Method of On Track Protection in Place Was Improper, Unsafe, and Inadequately Implemented

The method of On Track Protection selected by the SEPTA EIC was TAW. TAW is the **lowest** form of On Track Protection. Under TAW, the train tracks remain completely active, as if there is no work being performed. A watchperson or watchpersons are stationed such that they can adequately observe an approaching train from far away enough to allow for a horn to be sounded and the workers alerted to the oncoming train such that they can stop their work and clear to a position of safety at least 15 seconds prior to the train passing through. Under SEPTA's own rules and procedures, TAW is not the appropriate method of On Track Protection to be used if work could be fouling the track, i.e. within 4 feet of rail. According to the Trenching and Support Activities

The work being performed by Jesse Hernandez on the date of the accident was unquestionable fouling the track, as defined by the FRA and by SEPTA. This was also confirmed by the scene photographs produced by SEPTA showing the proximity of the trench to the tracks, and also by my own site inspection in March 2022. When work is fouling the track or has the potential to foul the track, TAW is not the safe and proper method of On Track Protection to use. This is common knowledge in the industry and a consistently employed safety practice is to implement foul time, which temporarily restricts movement of trains on the subject tracks to allow for the work to be completed safely. Per SEPTA's own investigation (discussed more below), and SEPTA's operating rules and procedures, the appropriate method of On Track Protection to use would be 1) Track Out of Service, where the track is shut down and trains cannot travel on them so the work can be done, or 2) a "Rule 135," which involves bringing trains to a complete stop immediately before the work area and allowing the train to proceed at a drastically reduced speed only once all workers are confirmed to be in a position of safety. Had either the Track Out of Service or the Rule 135 been implemented, this accident would not have happened.

Ex. A, Expert Report of Mr. Da Silva at p. 9 (emphasis added).

SEPTA's System Safety investigation also alarmingly revealed that the errors made by SEPTA in relation to Plaintiff's accident—utilizing TAW despite instructing the workers to dig the trench such that it was fouling the track—were not isolated but rather the result of a systemic breakdown in SEPTA's project coordination process. SEPTA holds a bi-weekly project coordination meeting to discuss upcoming projects that impact rail operations, and the departments that are required to participate in this meeting are the Track, B&B, C&S¹, Power, Control Center, Operations, Service Planning, System Safety, and Public Communications. See SEPTA System Safety Executive Summary Report at p. 5. At these meetings, “the scheduled work for multiple projects is discussed including the impact to rail service, ***and the type of roadway worker protection that will be used.***” *Id.* (emphasis added). According to SEPTA's System Safety, these meetings are critical because “[i]f the planned protection is not deemed adequate it will be revised and agreed upon prior to starting the work in the field.” *Id.* Outrageously, SEPTA System Safety's investigation discovered that the C&S Department “doesn't always attend the coordination meetings or support this process” and that “C&S does not always disclose their upcoming projects to the Control Center and Railroad Operations Division.” *Id.* at p. 6.

¹ SEPTA's Communications & Signals (C&S) Department was the one responsible for running and managing the subject Project.

On Thursday, June 14, 2018, System Safety interviewed Kevin Jurgelewicz, Director of Planning and Control Center Coordination. He informed System Safety that the EM&C Department has a biweekly project coordination meeting to discuss upcoming projects that affect Rail Operations. The meeting involves SEPTA's in house maintenance departments. The departments that should participate in this meeting are Track, B&B, C&S, Power, Control Center, Operations, Service Planning, System Safety and Public Communications. At these coordination meetings, the scheduled work for multiple projects is discussed including the impact to rail service, and the type of roadway worker protection that will be used. The goal is to coordinate the work to minimize too many projects going on at the same time that and/or project that significantly affect train service. The meetings also serve as a way to discuss the need to replace train service with alternate bus service if the nature of the work warrants rail service to be suspended. Finally the project coordination meetings also discuss the levels of roadway worker protection that will be provided. If the identified planned protection is not deemed adequate it will be revised and agreed upon prior to starting the work in the field. The project coordination meetings

also be the responsibility of C&S to provide the Roadway Workers, with the proper On Track Protection. System Safety investigation has discovered, on this and other projects in general, the C&S Department doesn't always attend the coordination meetings or support this process. Furthermore, C&S does not always disclose their upcoming projects to the Control Center and Railroad Operations Division. Had C &

Id. at pg. 5-6 (emphasis added).

The SEPTA System Safety report concludes that, “[h]ad C&S attended the project coordination meetings the discussions of protections could have identified their planned protection (TAW) was not acceptable for this type of work and a more appropriate level of protection would have been discussed.”

always disclose their upcoming projects to the Control Center and Railroad Operations Division. Had C & S attended the project coordination meetings the discussion of protection could have identified their planned protection (TAW) was not acceptable for this type of work and a more appropriate level of protection would have been discussed (Recommendation # 2).

Id. at p. 6 (emphasis added).

SEPTA's C&S Department, responsible to determine *how* the trains were to be operated through an active work zone for the protection of the workers, thus shunned the very system designed to ensure that on-track protection methods were vetted and approved. The report

concluded that causes of this accident include SEPTA management's lack of understanding of the proper means of protection, and the C&S Department's lack of attendance at project coordination meetings.

Contributing Causes

- C & S Management's understanding of the proper means of protection for this work was not adequate.
- The C & S's Department's lack of attendance at the project coordination meetings also contributed to this incident. Attending the project coordination meetings would have made all parties aware of their scheduled work along the SEPTA right of way and would have structured discussion about the planned level of protection ultimately requiring C&S to establish an Out of Service Track.

Id. at p. 7 (emphasis added).

Thus, SEPTA's own internal department concluded: (1) the trench was dug in such proximity that work performed in the trench was fouling the track; (2) because the work was fouling the track, TAW was not the proper and safe method of protection to use; (3) out of service track or Rule 135 was the appropriate method of protection to use; and (4) SEPTA's C&S Department personnel involved in this Project would have known TAW was not the proper method of protection to use if C&S had attended the project coordination meetings, which C&S did not.

Ex. F, SEPTA System Safety Executive Summary Report.

The consequence of SEPTA's failures here is that the train that struck and injured Jesse Hernandez was traveling through the work area at its normal rate of speed. Had a Rule 135 procedure been used, the train would have been brought to a full stop before being permitted to proceed through the work area at a reduced speed. *See* Deposition of William Boyer at 104:5-17. Had a track out of service procedure been used, the tracks would have been shut down completely and the trains wouldn't be operating at all on the airport line. This accident and the horrific injuries suffered by Plaintiff, Jesse Hernandez, was a direct consequence of SEPTA's C&S Department's

improper and unsafe decision to use TAW as the method of on-track protection. *SEPTA's liability is absolutely indisputable.*

IV. DAMAGES

1. Non-Economic Damages

Jesse Hernandez was catastrophically injured when he was smashed head-on by the SEPTA train on March 12, 2018. His face and chest were crushed. Upon arrival to the hospital, Jesse was immediately diagnosed with a ***depressed and comminuted frontal bone fracture, comminuted mandible fractures with displacement and angulation, fracture deformity to the nasal bone, depressed fracture of his right maxillary sinus wall, displaced fracture of his sternum, pulmonary contusion and significant lacerations to his scalp.*** See Exhibit B, Life Care Plan. Jesse's facial and jaw fractures were so severe that **his jaw was surgically wired shut** and he thus required a tracheostomy and percutaneous endoscopic gastrostomy for long term airway and nutritional management. Jesse remained hospitalized through March 30, 2018. At discharge, additional diagnoses included left-sided hearing loss, traumatic epidural hematoma, and cervical ligament injury. *Id.* Ultimately, Jesse was in a cervical collar for 3 months.



On April 3, 2018, Jesse's homecare nurse noted that Jesse continued to experience significant jaw pain as well as memory impairment. His jaw was still wired shut and he required a neck brace. On April 6, 2018, Jesse saw oral surgeon Dr. Rabie M. Shanti, who opined that further reconstruction surgery of Jesse's jaw may be required. Jesse's unrelenting jaw pain and worsening post traumatic stress disorder worsened all throughout April, as noted by his physical therapist and home care nurses. *Id.*

On May 11, 2018, nearly two months after the accident, the hardware keeping Jesse's jaw wired shut was removed, and the need for future bone grafting was discussed. On June 18, 2018, Jesse underwent psychological evaluation by Dr. Justin Wiley, Psy.D. Jesse was experiencing severe symptoms of depression, post traumatic stress disorder, and anxiety. Jesse was also struggling with cognitive and short-term memory deficits with ***“significant cognitive problems in the areas of attention, concentration, learning and memory.”*** See Exhibit C, Narrative Report of Dr. Wiley. Dr. Wiley opined, ***“[t]hese difficulties are likely due to a mild traumatic brain injury[]”*** and “Jesse Hernandez is suffering from chronic pain and disability.” *Id.* Dr. Wiley confirmed that Jesse's severe symptoms were “a consequential result of the work accident that occurred on March 12, 2018.” *Id.* ***Ultimately, Dr. Wiley diagnosed Jesse with major depressive disorder, postconcussional syndrome, and pain disorder with related psychological factors.*** *Id.* Jesse treated with Dr. Wiley on a regular basis for management of these psychological injuries.

On August 7, 2018, Jesse presented to occupational medicine specialist Dr. Steven Diamond, D.O. for management of his injuries and his unrelenting and debilitating pain, anxiety, and headaches. Jesse's activities of daily living, such as brushing his teeth, shaving, and drinking from a cup were difficult and caused Jesse great pain. Dr. Diamond noted that even five months after the accident, Jesse's jaw remained swollen, inflamed, and painful. Additionally, Jesse

exhibited abnormalities in the fifth (trigeminal), seventh (facial), eighth (vestibulocochlear), and eleventh (accessory) cranial nerves. See **Exhibit D**, Narrative Report of Dr. Diamond. Dr. Diamond noted that *Jesse’s “pain and physical symptoms had not shown continued significant improvement[.]”* *Id.* Dr. Diamond opined that Jesse’s injuries were permanent and could be “easily exacerbated and may prevent normal activities.”

PROGNOSIS & RECOMMENDATIONS:

It is my medical opinion within a reasonable degree of medical certainty, Mr. Hernandez suffered serious injuries as noted above that may result in permanent impairment. There is also medical reason to believe that his current medical condition can be easily exacerbated and may prevent normal activities when symptoms are at their worst. Thus, he will need to limit any type of strenuous activity in order to control his exacerbations.

The patient’s prognosis remains guarded. Due to the extent and nature of his injuries, periodic flare ups can be expected. This is based on my most recent visit which was 08/13/2019. I would be happy to re-evaluate Mr. Hernandez in order to provide a more current opinion. Again, this report is based upon my most recent visit of 08/13/2019.

Id. (emphasis added).

During his October 9, 2018 evaluation, Dr. Diamond noted that Jesse continued to have persistent pain around his neck and jaw, with numbness along the right side of his jaw and face. Other ongoing symptoms included anxiety, dizziness, visual disruptions, and photophobia. On November 6, 2018, Dr. Diamond noted that Jesse was experiencing nerve pain and symptoms extending from the bilateral upper extremities to his fingers, and that physical therapy and medications provided only “some pain relief.” See **Ex. B**.

On November 15, 2018, Jesse saw Dr. Jed Shapiro, M.D., for an evaluation of his persistent head pain that was noted to be dull, aching, sharp, and throbbing, and occurred daily. Dr. Shapiro documented muscle spasms and weakness in Jesse’s neck. Dr. Shapiro diagnosed concussion with headaches, cervical sprain and strain, post traumatic stress disorder, and fractures of the skull, mandible, and sternum. Dr. Shapiro opined that Jesse’s “multiple injuries are quite severe and

appear to be permanent. He will require ongoing treatment and most likely will never return to his pre-injury state. His injuries have affected his ability to obtain gainful income.”

Medical care typically provided for these types of injuries include surgery, medications, physical therapy, psychological therapy, and injections such as Botox and/or epidurals. Mr. Hernandez’s multiple injuries are quite severe and appear to be permanent. He will require ongoing treatment and most likely will never return to his pre-injury state. His injuries have affected his ability to obtain gainful income.

See **Exhibit E**, Narrative Report of Dr. Shapiro (emphasis added).

By November 16, 2018—over eight months after the accident—Jesse ***still could not consume normal food and the gastronomy tube remained implanted***. See **Ex. B**. In December 2018, Jesse’s treaters noted increased anxiety that would “manifest in panic” and cause him great difficulty in leaving his house and struggling in social situations. *Id.* On December 26, 2018, Dr. Shanti documented continued numbness in Jesse’s lower lip and issues with his bite, and noted that “there are things touching before they should touch,” causing improper mastication, affecting speech, and “causing him to drool.” *Id.*; see also **Exhibit F**, Narrative Report of Dr. Shanti.

On March 19, 2019—over a year after his accident—Jesse underwent removal of the hardware in his jaw, osteotomies, and maxillomandibular fixation. Throughout 2019 and 2020, Jesse continued to treat with his physicians who noted continued pain, difficulty eating, talking, and sleeping, continued headaches and severe postconcussion symptoms. Jesse’s jaw pain was unrelenting. Jesse testified:

- Q. All right. So specifically with parts of the body, you told me that you, you hurt the top of your head, the jaw, the teeth?
- A. **It feels like somebody grabbed like a - - I don’t know, like somebody got like, like a torque and squeeze my jaw all the time. That’s how it feels. I got pressure all the time in my jaw, all the time.**

My chest, my legs were hurting. They were bruised up. Really my head, it is all in my head. My head really got the most impact of everything. My head is very sensitive....I started walking a little, like after like a month I started walking, but little by little, like I had to take a walk, like a walk and walk with it. Somebody had to hold me. I can't walk that long. I used to get therapy. They used to come to my house, the doctor, and walk me around my whole apartment complex for exercise.

I had my mouth - - I had my mouth sewed up. I had my jaw wired up. They had the scissors behind my back just in case I had to throw up or something, they had to cut the wires. But I had all my jaw. And when I first got out of the hospital, I had my jaw sealed, I had a neck brace, and I had the feeding tube still on. I had the feeding tube still on.

But for me sleeping with the neck brace for three months, my jaw healed sideways. So I had to go back to the hospital to get another operation. They had to break my jaw again and do custom plates on my jaw. So I just - - I just really started eating not so long ago, to be honest with you, really not so long ago I started eating. I really still can't eat food. I can't hard - - can't sit down and eat a steak. I can't do that. I can't eat an apple. The softest thing I can eat is a grape maybe and it still hurts. I can't chew gum. I haven't chewed gum for two years.

See Deposition of Jesse Hernandez at pg. 97-101 (emphasis added).

Jesse was evaluated by Dr. Benjamin Duckles, physician Board Certified in pain medicine and interventional pain. Dr. Duckles opined that the “the pain and functional limitations he suffers with will persist for an indefinite period and will likely worsen with time as these injuries have accelerated the degenerative cascade which affects the cervical spine following trauma” and that his “impairments due to the injuries to his facial bone and cervical spine are permanent.”

Mr. Hernandez's impairments due to the injuries to his facial bone and cervical spine are permanent. The pain and functional limitations that he suffers with will persist for an indefinite period and will likely worsen with time as these injuries have accelerated the degenerative cascade which affects the cervical spine following trauma. He will need physical therapy, cognitive behavioral therapy, and pain management treatments to even maintain his current depleted level of function and attempt to slow his anticipated functional decline. All of Mr. Hernandez's impairments, pain, and functional limitations are a direct result of the injuries he sustained in the March 2018 accident.

See **Exhibit G**, Expert Report of Dr. Duckles (emphasis added).

Jesse was evaluated by Dr. Samuel Romirowsky to determine the extent of his severe psychological injuries. Dr. Romirowsky found that Jesse continues to deal with vivid memories of his near-death accident, extreme stress and anxiety, irritability, moodiness, fatigue, anger, nightmares, and profound sadness. See **Exhibit H**, Expert Report of Dr. Romirowsky. He has physical scars, pain, physical limitations, sleep impairment with nightmares, and persistent worries and apprehension about the future which all *“perpetuate a continuous cycle of psychological distress from which he has not been able to escape.”* *Id.* Dr. Romirowsky diagnosed Jesse with **Major Depressive Disorder, Posttraumatic Stress Disorder, Persistent Complex Bereavement Disorder, Pain Disorder, and Post-Concussion Syndrome.** *Id.*

Jesse was also evaluated by Dr. Evan Kovalsky. Dr. Kovalsky opines that Jesse suffered a permanent injury to his cervical region I the soft tissues and interspinous ligaments which continue to cause him pain and difficulty with his activities and neck range of motion.

Based on the timeframe of this injury and ongoing subjective complaints, I do feel that there was a permanent injury to the cervical region in the soft tissues and interspinous ligaments which continue to cause him some pain and difficulty with his activities and neck range of motion. I believe the ongoing use of over-the-counter medications is reasonable and he would benefit from continued home exercises for strengthening and stretching to the cervical region. This may need to be done on a more frequent and routine basis to maximize its benefit.

As I previously indicated, it appears that Mr. Hernandez is more significantly impacted and impaired by his other significant injuries which continue to cause him significant daily symptoms. From the perspective of the cervical injury, he will require some ongoing restrictions in activities that would require prolonged awkward posturing of his head and neck and with very physical work with heavy lifting.

See **Exhibit I**, Expert Report of Dr. Kovalsky (emphasis added).

Jesse’s pain and suffering has been immense, and it will continue to plague him for the rest of his life. The jury’s award for pain and suffering will be gigantic.

2. Economic Damages

This accident has significantly impaired Jesse's ability to earn a living. Vocational expert Dr. Steven Gumerman, Ph.D., evaluated Jesse and found that he is unable to return to the same work he was performing at the time of the accident for the many reasons expressed by Jesse's treating physicians and the expert physicians who evaluated Jesse. Dr. Gumerman opines that, based on his testing scores, Jesse is not eligible for any college or vocational level education or training, and that his current employment prospects are limited to unskilled labor such as hand packing and sorting. See **Exhibit J**, Expert Report of Dr. Gumerman. Dr. Gumerman notes that in 2017, Jesse's last full year of work prior to the accident, Jesse earned \$52,901.00, but going forward would be limited to earning between \$15,776.80 to \$37,125.00 depending on whether Jesse is able to return to full time or only part time employment. *Id.*

In addition to the loss of earning capacity Jesse has suffered, he will require expensive medical care moving forward as a result of his injuries and ongoing symptoms. Plaintiff's Life Care Planner, Kim Kushner, opines that Jesse's future medical care needs range from \$653,583 to \$822,938, depending on whether he receives the medical care in Pennsylvania or Puerto Rico. See **Ex. B**. Plaintiff's economist, Andrew Verzilli, analyzed the loss in earning capacity and the future medical care costs and opines that the total economic loss suffered by Jesse as a result of this accident is **\$2,817,742**.

Summary of Opinions

Based upon the methodology discussed and the information provided to date, our estimates of the economic losses, relative to Jesse Hernandez, are summarized as follows:

Loss in Earning Capacity	\$1,060,975 to \$1,891,796
Future Medical Care	\$743,071 to \$925,946

Total Economic Loss	\$1,804,046 to \$2,817,742
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See **Exhibit K**, Expert Report of Andrew Verzilli (emphasis added).

Additionally, the workers' compensation lien amounts to \$726,351.01 for paid medicals and \$273,766.85 for indemnity, for a total lien amount of **\$1,000,117.86**.

Thus, the total economic Plaintiff will present to the jury at trial will be **\$3,817,859.86**.

Plaintiff submits that the economic damages in this case—which will be awarded by the jury—will be utterly **dwarfed** by the non-economic damages awarded for Jesse Hernandez's unfathomable pain and suffering.

V. ATTACHMENTS

- A. Expert Report of Gus Da Silva
- B. Life Care Plan by Kimberly Kushner
- C. Narrative Report of Dr. Wiley
- D. Narrative Report of Dr. Diamond
- E. Narrative Report of Dr. Shapiro
- F. Narrative Report of Dr. Shanti
- G. Expert Report of Dr. Duckles
- H. Expert Report of Dr. Romirowsky
- I. Expert Report of Dr. Kovalsky

- J. Expert Report of Dr. Gumerman
- K. Expert Report of Andrew Verzilli

VI. SETTLEMENT STATUS

The Parties have not yet engaged in any substantive settlement discussions. Plaintiff anticipates sending a demand letter to Defendant ICC in advance of the Pre-Trial Conference. Plaintiff's demand to settle his claims against Defendant ICC is **\$11,000,000**, the full extent of ICC's insurance coverage.

VII. PLAINTIFF'S WITNESS LIST

1. Jesse Hernandez (Plaintiff);
2. Nydia Vasquez;
3. Dr. Justin Wiley, Psy.D. (expert), Behavioral Medicine of Pennsylvania, 310 East Shore Road, Suite 100, Great Neck, NY 11023;
4. Dr. Steven Diamond, D.O. (expert), 1413 W. Moyamensing Avenue, First Floor, Philadelphia, PA 19145;
5. Dr. Rabi Shanti (expert), Perelman Center for Advanced Medicine, South Pavilion, 4th Floor, 3400 Civic Center Blvd., Philadelphia, PA 19104;
6. Dr. Jed Shapiro (expert), Institute for Advanced Medicine and Wellness, 2800 South 20th Street, Bldg 12-B, Suite D, Philadelphia, PA 19145;
7. Dr. Brian Smith (expert), The Trauma Center at Penn, 51 North 39th Street, 1st Floor MOB, Suite 120, Philadelphia, PA 19104;
8. Gus Da Silva, M.S., P.E. (expert), 171 Mt. Sinai Avenue, Mt. Sinai, NY 11766;
9. Dr. Benjamin Duckles (expert), 223 Chestnut Street, Haddonfield, NJ 08033;
10. Dr. Steven Gumerman (expert), 1646 Fawn Lane, Huntingdon Valley, PA 19006;
11. Dr. Evan Kovalsky (expert), Comprehensive Diagnostic Center, 1200 East High Street, Suite 217, Pottstown, PA 19464;
12. Kimberly Kushner (expert), 505 Lakeside Drive, Southampton, PA 18966;
13. Dr. Samuel Romirowsky (expert), 20 West Third Street, Media, PA 19063;
14. Andrew Verzilli (expert), 411 North Broad Street, Lansdale, PA 19446;
15. William "Steve" Hare (as on cross);
16. Anthony Ocasio (as on cross);
17. Charles Rhoads (as on cross);

18. Dennis Coleman (as on cross);
19. Edwin Quay (as on cross);
20. Ernesto Cintron (as on cross);
21. James Ridgway (as on cross);
22. Jermie Ortiz (as on cross);
23. Jonathan Watts (as on cross);
24. Jorge Lopez (as on cross);
25. Juan Vega (as on cross);
26. Michael Monastero (as on cross);
27. Sammy Sosa (as on cross);
28. William Boyer (as on cross);
29. Dennis Rimbaut (Philadelphia Fire Dept., EMS);
30. Records Custodian, Penn Presbyterian Medical Center;
31. Records Custodian, Behavioral Medicine of Pennsylvania;
32. Medical Billing Custodian of any and all medical providers;
33. Records Custodian of any and all medical providers;
34. Defendants' witnesses who have been deposed (as on cross);
35. Defendants' expert witnesses.

Plaintiff reserves the right to call any and all witnesses identified by other parties in connection with this litigation. Plaintiff also reserves the right to call Records Custodians for all of Plaintiff's healthcare providers, including physicians, hospitals, physical therapists and pharmacies.

VIII. PLAINTIFF'S EXHIBIT LIST

1. SEPTA System Safety Executive Summary Report, Modified and Re-Issued March 4, 2019;
2. SEPTA System Safety Executive Summary Report, March 12, 2018;
3. William Boyer 3/23/2018 Memorandum;
4. SEPTA-ICC Contract;
5. SEPTA Technical Trenching Requirements;
6. ICC-MSI Subcontract;

7. Dennis Coleman accident report;
8. March 2019 Memo from Jim Fox re Re-Issued System Safety Report;
9. Police Report;
10. Police Complaint Report;
11. Pre-Job Briefing document;
12. Safety Corrective Action Plan following System Safety report;
13. Scene photographs;
14. SEPTA Employee Injury Report Form;
15. SEPTA internal emails;
16. SEPTA Roadway Worker Protection (RWP) Manual;
17. SEPTA Supervisor Special Report
18. Worker statements;
19. SEPTA video of accident from forward facing train-mounted camera;
20. Payroll documents;
21. CV, Dr. Justin Wiley;
22. Narrative Report of Dr. Justin Wiley;
23. Documents referred to or relied on by Dr. Wiley;
24. CV, Dr. Steven Diamond;
25. Narrative Report of Dr. Diamond;
26. Documents referred to or relied on by Dr. Diamond;
27. CV, Dr. Rabi Shanti;
28. Narrative Report of Dr. Shanti;
29. Documents referred to or relied on by Dr. Shanti;
30. CV, Dr. Jed Shapiro;
31. Narrative Report of Dr. Shapiro;
32. Documents referred to or relied on by Dr. Shapiro;
33. CV, Dr. Brian Smith;
34. Narrative Report of Dr. Brian Smith;
35. Documents referred to or relied on by Dr. Smith
36. CV, Gus Da Silva;
37. Expert Report of Gus Da Silva;
38. Documents referred to or relied on by Mr. Da Silva;
39. CV, Dr. Benjamin Duckles;

40. Expert Report of Dr. Duckles;
41. Documents referred to or relied on by Dr. Duckles;
42. CV, Dr. Steven Gumerman;
43. Expert Report of Dr. Gumerman;
44. Documents referred to or relied on by Dr. Gumerman;
45. CV, Dr. Evan Kovalsky;
46. Expert Report of Dr. Kovalsky;
47. Documents referred to or relied on by Dr. Kovalsky;
48. CV, Kimberly Kushner;
49. Life Care Plan by Kimberly Kushner;
50. Documents referred to or relied on by Kimberly Kushner;
51. CV, Dr. Samuel Romirowsky;
52. Expert Report of Dr. Romirowsky;
53. Documents referred to or relied on by Dr. Romirowsky;
54. CV, Andrew Verzilli;
55. Expert Report of Andrew Verzilli;
56. Documents referred to or relied on by Mr. Verzilli;
57. All Defendants' expert reports;
58. All Defendants' experts' CVs;
59. All documents referred to or relied upon by Defendants' experts;
60. Deposition/Videotaped Deposition, Jesse Hernandez, and all exhibits;
61. Deposition/Videotaped Deposition, Nydia Vasquez, and all exhibits;
62. Deposition/Videotaped Deposition, William "Steve" Hare, and all exhibits;
63. Deposition/Videotaped Deposition, Anthony Ocasio, and all exhibits;
64. Deposition/Videotaped Deposition, Charles Rhoads, and all exhibits;
65. Deposition/Videotaped Deposition, Dennis Coleman, and all exhibits;
66. Deposition/Videotaped Deposition, Edwin Quay, and all exhibits;
67. Deposition/Videotaped Deposition, Ernesto Cintron, and all exhibits;
68. Deposition/Videotaped Deposition, James Ridgway, and all exhibits;
69. Deposition/Videotaped Deposition, Jermie Ortiz, and all exhibits;
70. Deposition/Videotaped Deposition, Jonathan Watts, and all exhibits;
71. Deposition/Videotaped Deposition, Jorge Lopez, and all exhibits;
72. Deposition/Videotaped Deposition, Juan Vega, and all exhibits;

73. Deposition/Videotaped Deposition, Michael Monastero, and all exhibits;
74. Deposition/Videotaped Deposition, Sammy Sosa, and all exhibits;
75. Deposition/Videotaped Deposition, William Boyer, and all exhibits;
76. All medical records;
77. Statements;
78. Agreements;
79. Contracts;
80. Policies;
81. Notes;
82. Letters;
83. Emails;
84. Reports;
85. Drawings;
86. Manuals;
87. Plans;
88. Daily Reports;
89. Accident Reports;
90. Memoranda;
91. Diagrams;
92. Sketches;
93. Illustrations;
94. Receipts;
95. Bills;
96. Invoices;
97. Work orders;
98. Blow ups and enlargements of various medical records;
99. Blow ups and enlargements of Plaintiff's injuries and medical procedures;
100. Blow ups of photographs;
101. Illustrations of Plaintiff's injuries;
102. Anatomical models;
103. Records, Penn Presbyterian Medical Center;
104. Records, Philadelphia Fire Department;
105. Records, Behavioral Medicine of Pennsylvania;

106. Tax records;
107. Earnings records;
108. Radiographs/films/reports;
109. Medical Billing Custodian of all medical providers;
110. All documents produced by any and all parties;
111. All documents produced by any and all third-parties;
112. All discovery exchanged between the parties;
113. All interrogatories addressed to Plaintiff;
114. All answers to interrogatories produced by Plaintiff;
115. All requests for production addressed to Plaintiff;
116. All responses to requests for production produced by Plaintiff;
117. All documents produced by Plaintiff;
118. All interrogatories addressed to any and all Defendants;
119. All responses to interrogatories produced by any and all Defendants;
120. All requests for production addressed to any and all Defendants;
121. All responses to requests for production produced by any and all Defendants;
122. All requests for admission;
123. All responses to requests for admission;
124. Documents produced by any and all Defendants in discovery;
125. United States Department of Health and Human Services Vital Statistics of the United States, Life Tables;
126. Wage, benefits, and lost earnings documentation;
127. Employment records;
128. LinkedIn records;
129. All pleadings;
130. All documents exchanged between the parties;
131. Any and all relevant documents discovered between now and the end of trial;
132. Documents, presentations, Powerpoints, or such exhibits as are used at trial.

IX. ANTICIPATED TRIAL LENGTH

Plaintiff anticipates that the trial of this matter will last approximately 10 trial days.

Respectfully submitted,

SALTZ MONGELUZZI & BENDESKY P.C.

BY: /s/ Samuel B. Dordick
ROBERT J. MONGELUZZI
JEFFREY P. GOODMAN
SAMUEL B. DORDICK

CERTIFICATE OF SERVICE

I, Samuel B. Dordick, Esq., hereby certify that a true and correct copy of the within Pre-Trial Conference Memo will be served upon all counsel and unrepresented parties by the electronic filing system, or by regular mail if counsel or the unrepresented party does not participate in E-filing, on the date of E-filing acceptance of the document.

SALTZ MONGELUZZI & BENDESKY P.C.

BY: /s/ Samuel B. Dordick
ROBERT J. MONGELUZZI
JEFFREY P. GOODMAN
SAMUEL B. DORDICK

Dated: 9/13/2022